

testator had devised a college lease of twenty-one years to his wife for life, remainder to her son, she paying 10*l.* per annum to her son *during her life*; it was ruled, that, as the testator contemplated the continuance of the lease during the life of the wife, she was bound to renew. These, however, were cases accompanied with special circumstances. It has since been decided by Lord Plunket, in Ireland, that a settlement with the *mere interposition of a trustee* does *not* impose an obligation to renew (*f*).

3. **Whether implied in a marriage settlement.** — Where leaseholds of this kind are made the *subject of a marriage settlement*, it may be argued, that as the parents and issue who have any interest given them are *purchasers for value*, the enjoyment of the tenant for life should be consistent with that of the other subsequent takers. But in *Lawrence v. Maggs* (*g*), the case of * a marriage settlement with trustees interposed, but without any mention of renewals, Lord Northington was apparently of opinion that the tenant for life was *not* bound to renew.

4. **Implied in articles for a settlement.** — If renewable leaseholds upon marriage be *articled to be settled*, the Court will, in executing the settlement, insert the proper direction for renewals. This, it seems, was directly determined in *Graham v. Lord Londonderry* (*a*): and the case of *Lawrence v. Maggs*, before Lord Northington, was cited before Lord Thurlow in *Pickering v. Vowles* (*b*), as establishing the same doctrine; but it appears by the report taken from Lord Northington's own MS. that the Bar were mistaken in

(*f*) *O'Ferrall v. O'Ferrall*, L*i.* & G. Rep. temp. Plunket, 79. In *Trench v. St. George*, 1 Dru. & Walsh, 417, before the same Judge, it is not clear whether his Lordship did or not consider the will as creating an obligation to renew, but it would rather appear that he did. The remainderman was held not liable to contribute towards the renewal fines in favour of the tenant for life, except as respected certain fines paid subsequently to 1819, as to which the remainderman

submitted to contribute. See pp. 454–456.

(*g*) 1 Eden, 453. Search has been made for this case in R. L. through several years, but the decree has not been found. See *Lord Montfort v. Cadogan*, 17 Ves. 488, S. C. 19 Ves. 638; *Trench v. St. George*, 1 Dru. & Walsh, 417.

(*a*) Cited *Stone v. Theed*, 2 B. C. C. 246.

(*b*) 1 B. C. C. 197. The cause does not appear in R. L.